

25TRCV01523 25TRCV01523

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-03

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Case Number: 25TRCV01523 Hearing Date: August 3, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

timothy hill

;

Plaintiff,

vs.

NOARUS

INVESTMENTS, INC.

, et al.;

Defendants.

Case

No.:

25TRCV01523

Hearing

Date:

August
3, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

PLAINTIFF

TIMOTHY HILL'S MOTION FOR SUMMARY ADJUDICATION

(2)

PLAINTIFF

TIMOTHY HILL'S REQUEST TO ENTER INTERLOCUTORY JUDGMENT

MOVING PARTY: Plaintiff, Timothy Hill

RESPONDING

PARTY: Defendant, American Honda

Motor Co., Inc.

(1)

Plaintiff

Timothy Hill's Motion for Summary Adjudication is DENIED pursuant to Code of Civil Procedure 437c.

(2)

Plaintiff

Timothy Hill's Request to Enter Interlocutory Judgment is DENIED.

The Court considers the moving papers filed on May 12, 2026, the opposition brief filed on July 14, 2026, and the reply brief filed on July 23, 2026.

BACKGROUND

Factual Background

On May 12, 2025, plaintiff Timothy Hill ("Plaintiff") filed the Complaint against defendants Noarus Investments, Inc., American Honda Motor Co., Inc., and DOES 1 through 100. The Complaint includes one cause of action for (1) Violation of Song-Beverly Consumer Warranty Act, Civil Code § 1790 et seq.

Procedural Background

On May 12, 2026, Plaintiff filed the motion for summary adjudication.

On July 14, 2026, Defendant filed an opposition brief. On July 23, 2026, Plaintiff filed a reply brief.

EVIDENTIARY OBJECTIONS

Defendant's Objections

Sustain:

7 – Relevance.

Overrule: 1, 2, 3, 4, 5, and 6.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc., § 437c, subd. (a)(1).) "A cause of action has no merit if either of the following exists: (1) One or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded. (2) A defendant establishes an affirmative defense to that cause of action." (Code Civ. Proc., § 437c, subd. (o).)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing[.]" (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510,

1519.) “A plaintiff or cross-complainant has met that party’s burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(1).)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; Code Civ. Proc., § 437c, subd. (c).)

DISCUSSION

Plaintiff moves for summary adjudication on two distinct claims of liability presented under the singular cause of action for Violation of Song-Beverly Consumer Warranty Act, Civil Code § 1790 et seq.: (1) Breach of Express Warranty and (2) Breach of Implied Warranty of Merchantability. (Notice of MSJ, pp. 1:28-2:16.)

Breach of Express Warranty

“A plaintiff pursuing an action under the Song–Beverly Act has the burden to prove the following elements: (1) the product had a defect or nonconformity covered by the express warranty; (2) the product was presented to an authorized representative of the manufacturer for repair; and (3) the manufacturer or its representative did not repair the defect or nonconformity after a reasonable number of repair attempts.”

(Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 7798-799, citing Oregel v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1101.)

Plaintiff contends that his 2024 Honda Prologue, an all-electric vehicle, exhibits a covered nonconformity within the high-voltage battery (HV battery) system or its charging components.

(Plaintiff's Undisputed Material Facts ("UMFs"), ¶¶ 1, 6; Declaration of Timothy Hill ("Hill Decl."), ¶¶ 3-4, Exh. A.)

[However, the Court observes that the evidence provided does not demonstrate that there is no triable issue of material fact concerning the existence of this nonconformity.]

On July 8, 2024, Plaintiff entered into a lease agreement for the vehicle. (Plaintiff's UMFs, ¶ 1; Hill Decl., ¶¶ 3-4, Exh. A.) Defendant issued a limited express warranty for the new vehicle, which encompasses all systems for a duration of three years or 36,000 miles. (Plaintiff's UMFs, ¶ 4; Hill Decl., ¶ 5, Exh. B.) Additionally, specific powertrain components are covered for five years or 60,000 miles, while the HV battery system is warranted for eight years or 100,000 miles. (Plaintiff's UMFs, ¶ 4; Hill Decl., ¶ 5, Exh. B.)

On January 31, 2025, Plaintiff presented his vehicle to Airport Marina Honda for warranty repairs, indicating that "when connecting vehicle to charge port, vehicle is not recognized by good known charger [and] also disconnects in the middle of charging." (Plaintiff's UMFs, ¶ 6; Hill Decl., ¶ 5, Exh. C, p. 1.)

However, the technician's report indicates an inability to "replicate charging station not recognizing vehicle." (Plaintiff's UMFs, ¶ 7; Hill Decl., ¶ 6, Exh.

C, p. 1.) The vehicle's computer did not register any malfunction codes, and it successfully charged to 94% when connected to the charging station at Airport Marina Honda. (Plaintiff's UMFs, ¶ 7; Hill Decl., ¶ 6, Exh. C, p. 1.) Additionally, the report states that the "charging system operating normal." (Plaintiff's UMFs, ¶ 7; Hill Decl., ¶ 6, Exh. C, p. 1.)

On February 17, 2025, Plaintiff brought his vehicle to Scott Robinson Honda for warranty repairs, reporting that "when trying to charge vehicle it will not recognize vehicle and may shut off mid cycle when charging." (Plaintiff's UMFs, ¶ 8; Hill Decl., ¶ 7, Exh. D, p. 1.) However, the technician noted that they "could not duplicate concern."

(Plaintiff's UMFs, ¶ 9; Hill Decl., ¶ 7, Exh. D, p. 1.) The report further states that the technician "[c]harged vehicle to 95% (max charge) and vehicle did not disconnect, also had no problem charging or connecting." (Plaintiff's

UMFs, ¶ 9; Hill Decl., ¶ 7, Exh. C, p. 1.)

Plaintiff alleges that “[f]or the next months, the vehicle continued to have intermittent charging problems and would not charge fully[.]” including at various “EvGo” locations recommended by Defendant for Prologue owners to charge their vehicles. (Plaintiff’s UMFs, ¶ 10; Hill Decl., ¶ 8.)

On April 11, 2025, Plaintiff brought his vehicle back to Airport Marina Honda for warranty repairs, reporting a “detection error code 50 present when plugging into certain charging stations.” (Plaintiff’s UMFs, ¶ 11; Hill Decl., ¶ 9, Exh. E, p. 2.) He reported that “[t]here does not seem to be consistency as the type of station when this occurs[.]” (Plaintiff’s UMFs, ¶ 11; Hill Decl., ¶ 9, Exh. E, p. 2.) Yet, the technician noted that the “FTS was unable to replicate customers’ concern at this time.” (Plaintiff’s UMFs, ¶ 12; Hill Decl., ¶ 9, Exh. E, p. 2.) Moreover, it was documented that Plaintiff’s vehicle successfully charged at both Level 1 and Level 2 chargers at the dealership without encountering any issues. (Plaintiff’s UMFs, ¶ 12; Hill Decl., ¶ 9, Exh. E, p. 2.) The assessment also indicated that the “system is operating to manufacture standards.” (Plaintiff’s UMFs, ¶ 7; Hill Decl., ¶ 6, Exh. C, p. 1.)

Plaintiff also contend that when utilizing the fast charging options available in the settings, “vehicle is not actually charging to the fast capabilities that customer was promised[.]” (Plaintiff’s UMFs, ¶ 11; Hill Decl., ¶ 9, Exh. E, p. 2.) He reported witnessing a maximum charging rate of 71 kW. (Plaintiff’s UMFs, ¶ 11; Hill Decl., ¶ 9, Exh. E, p. 2.) Time-stamped photographs provided by the Plaintiff demonstrated that upon plugging in the charger, the rate was initially 71 kW; however, after approximately 44 minutes of charging, it decreased to 35 kW. (Plaintiff’s UMFs, ¶ 11; Hill Decl., ¶ 9, Exh. E, p. 2.)

Despite these observations, the technician stated that “FTS was not able to verify customer concerns at this time.” (Plaintiff’s UMFs, ¶ 12; Hill Decl., ¶ 9, Exh. E, p. 2.) The technician further explained that this reduction in charging rate is typical as the vehicle nears its full charge, as it transitions into “top off mode,” resulting in a decrease in kilowatt (kW) output. (Plaintiff’s UMFs, ¶ 12; Hill Decl., ¶ 9, Exh. E, p. 2.) The report

confirmed that the “system is operating to manufacture standards.” (Plaintiff’s UMFs, ¶ 12; Hill Decl., ¶ 9, Exh. E, p. 2.)

Plaintiff indicates that he is experiencing persistent challenges while attempting to charge his vehicle, whether at public charging stations or with a charger borrowed from a neighbor.

(Plaintiff’s UMFs, ¶ 13; Hill Decl., ¶¶ 10-11.) Consequently, he has opted to leave the vehicle permanently parked at his residence since September 2025. (Plaintiff’s UMFs, ¶ 15; Hill Decl., ¶ 11.) While Plaintiff presents evidence indicating the experience of a nonconformity, the evidence also shows that the vehicle successfully held a charge, attaining levels of 94% and 95% during two separate visits to the dealership. Ergo, a triable issue of a material fact.

Furthermore, the technicians were unable to replicate the issues that Plaintiff alleges he has encountered with the vehicle. On each occasion, the technicians confirmed that the vehicle was operating in accordance with the manufacturer’s specifications. Thus, Plaintiff is unable to demonstrate that there is no triable issue of material fact concerning the existence of this nonconformity.

In an attempt to refute this conclusion, Plaintiff argues, “A manufacturer’s inability to duplicate a defect is itself a failure to repair: ‘a failure to repair is no less a failure simply because the defect could not be duplicated on every attempt.’ (Oregel v. American Isuzu Motors, Inc. (2001) 90 Cal.App.4th 1094, 1103.) [Defendant’s] apparent theory that repeatedly telling a customer ‘no problem found’ insulates it from liability is precisely the argument Oregel rejects.” (Reply, p. 2:9-13.) Such an argument would be persuasive if the Court of Appeal in Oregel had actually made that statement. However, the Court points out that Plaintiff’s quote is fictional, as the Court of Appeal did not make such a statement.

As such, the plaintiff’s motion for summary adjudication is DENIED with respect to this claim. There is a triable issue of material fact with respect to the existence of a nonconformity. Breach of Implied Warranty of Merchantability

“ ‘Unless specific

disclaimer methods are followed, an implied warranty of merchantability accompanies every retail sale of consumer goods in the state. (§ 1792.) This warranty includes a guarantee that the particular item is "fit for the ordinary purposes for which such goods are used." (§ 1791.1, subd. (a)(2).)' [Citation.]

Breach of the implied warranty of merchantability 'means the product did not possess even the most basic degree of fitness for ordinary use. (Com. Code, § 2314, subd. (2).)' [Citation.]" (Carver v. Volkswagen Group of America, Inc. (2024) 107 Cal.App.5th 864, 878, internal citations omitted.)

"The duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer." (Civ. Code, § 1791.1, subd. (c).)

Here, Plaintiff has failed to demonstrate that there is no triable issue of material fact related to the existence of a defect within the first year that would impact on the vehicle's ability to be driven as discussed above. As such, the plaintiff's motion for summary adjudication is DENIED with respect to this claim.

Accordingly, Plaintiff's motion for summary adjudication and the request for interlocutory judgment are DENIED.

ORDERS

1) Plaintiff

Timothy Hill's Motion for Summary Adjudication is DENIED.

2) Plaintiff

Timothy Hill's Request to Enter Interlocutory Judgment is DENIED.

3) Plaintiff

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 3, 2026

Tamara
Hall

Judge
of the Superior Court